



CHAPTER 32.

An Act to authorise the making out of moneys provided by Parliament of acreage payments in respect of crops grown in the year nineteen hundred and forty-seven on land affected by abnormal flooding; to amend the Hill Farming Act, 1946, as respects subsidy payments for sheep; and to authorise the making of advances in respect of such subsidy payments for the years nineteen hundred and forty-eight and nineteen hundred and forty-nine. [18th July 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Acreage payments where cropping affected by abnormal floods.

1.—(1) The Minister of Agriculture and Fisheries (hereafter in this section referred to as "the Minister") may, in accordance with the provisions of a scheme made by him under this section with the approval of the Treasury (hereafter in this section referred to as "the scheme"), make out of moneys provided by Parliament payments in respect of the growing in the year nineteen hundred and forty-seven of a commercial crop of any description specified in the scheme, in any case where the Minister is satisfied—

- (a) that by reason of abnormal flooding the growing of the crop in question on the land on which it is to be grown is attended by abnormal risk of loss ;
- (b) that apart from the flooding the said land would have been used for the growing of crops in the year nineteen hundred and forty-seven ;

(c) that in the circumstances the growing of the crop in question is an appropriate use of the said land ;
and as to such other matters as may be specified in the scheme.

(2) Payments under this section shall be made by reference to the area on which a crop is grown, and shall be at such rate as may be specified in the scheme ; and the scheme may specify different rates in relation to different crops, or in relation to different purposes for which a crop is grown.

(3) A payment under this section shall be made to the person who at the time when the crop in question was sown or planted on the land in question was the occupier of that land :

Provided that where before the payment is made the said person has died or any other event (other than the execution of an assignment) has occurred whereby debts accruing due to the said person at the said time would be claimable by some other person, the payment may be made to that other person.

(4) The scheme may make provision—

- (a) as to the time within which and the manner in which applications for payments under this section are to be made ;
- (b) for the reduction or withholding of payments, and the recovery of payments made, where a crop is damaged by negligence in cultivation or harvesting ;
- (c) for disregarding a crop where the total area on which it is grown does not exceed one tenth of an acre, or such smaller area as may be specified in the scheme, and for disregarding, in calculating the area on which a crop is grown, any fraction of an acre less than one tenth, or such smaller fraction as may be so specified ;
- (d) for the withholding of payments where the aggregate of the payments under the scheme in respect of the land worked as a unit by any person would be less than one pound.

(5) The scheme may be varied by order of the Minister made with the approval of the Treasury.

(6) Any scheme or order under this section shall be laid before Parliament forthwith after being made, and if either House of Parliament, within the period of forty days beginning with the day on which the scheme or order is laid before it, resolves that an Address be presented to His Majesty praying that the scheme or order be annulled, no further proceedings shall be taken thereunder after the date of the resolution, and His Majesty may by Order in Council revoke the scheme or order, so, however, that any such resolution and revocation shall be without prejudice to the validity of anything previously done under the scheme or order or to the making of a new scheme or order.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(7) Any payments made by the Minister before the coming into force of the scheme, being payments which would have been authorised by the scheme if it had then been in force, shall be deemed to be payments authorised by the scheme.

(8) In this section the expression "commercial crop" means a crop grown for sale or for consumption or use for the purposes of a trade or business, and includes a crop grown for consumption or use for the purposes of any other undertaking, whether carried on for profit or not.

Hill sheep subsidy payments.

2.—(1) The following provisions of this section shall have effect in relation to subsidy payments in respect of sheep made under section thirteen of the Hill Farming Act, 1946 (which provides for the making, in accordance with hill sheep schemes, of such payments as aforesaid by reference to numbers maintained on the relevant days (as determined by the schemes) in December in the years nineteen hundred and forty-six to nineteen hundred and fifty, or in Northern Ireland in January in the years nineteen hundred and forty-seven to nineteen hundred and fifty-one).

Reckoning of hill sheep subsidy payments by reference to circumstances at first relevant day.
9 & 10 Geo. 6.
c. 73.

(2) A hill sheep scheme may provide that where sheep of a description qualifying for subsidy payments were being kept on a hill farm on the first relevant day, and subsidy payments fall to be made under the scheme in respect of sheep kept on that farm on any subsequent relevant day specified in the scheme for the purposes of this subsection, then if the recipient of the last-mentioned payments so elects those payments shall be calculated as if the flock maintained on the farm on the subsequent relevant day were a flock of the like description, kept and managed in the like manner, and comprising the like number of sheep of the like description, as on the first relevant day:

Provided that where between the first and the subsequent relevant day changes have been made in the system of management of the sheep kept on the farm and the changes are of such a nature as to reduce the amount of subsidy payments, then in so far as it appears to the appropriate Minister that the changes are not justifiable by circumstances occurring since the first relevant day the appropriate Minister may make a corresponding reduction in the subsidy payments payable by virtue of this subsection.

(3) As respects subsidy payments relating to any such subsequent relevant day as aforesaid, the provision made by a hill sheep scheme by virtue of the last foregoing subsection may be made so as to apply either generally or in any case where it is shown to the satisfaction of the appropriate Minister that by reason of the circumstances of a particular applicant for a payment it is equitable that the provision should apply in his case.

(4) In this section the expression "hill farm" means an area of hill land as defined in the hill sheep scheme in question, or of such land and other land, farmed as a unit.

(5) Where by reason of the division of a hill farm or any other alteration of boundaries a hill farm occupied on a subsequent relevant day consists of part of a hill farm occupied on the first relevant day, either with or without other land, or of the whole of the last-mentioned farm together with other land, the appropriate Minister may for the purposes of subsection (2) of this section treat the two farms as one, but where by virtue of this subsection two farms are so treated the appropriate Minister may direct that subsection (2) of this section shall apply as if the number and description of sheep in the flock last therein referred to were varied in such manner as appears to him appropriate having regard to the division or the alteration of boundaries, as the case may be.

Advances on
subsidy
payments
payable in
1948 and 1949.

3.—(1) A hill sheep scheme may provide for the making out of moneys provided by Parliament, in the case of subsidy payments thereunder relating to the second and third relevant days calculated in accordance with subsection (2) of the last foregoing section, of advances in respect of the payments of amounts not exceeding the limits hereinafter provided, and in particular—

- (a) for varying the rate for advances, subject to the said limits, according to the rate of loss by weather conditions sustained by flocks during such period in the year nineteen hundred and forty-seven as may be specified in the scheme or, in the case of payments relating to the second relevant day, according to such other circumstances as may be so specified ;
- (b) for prescribing a different rate for advances in respect of sheep of different descriptions or comprised in flocks kept for different purposes or in flocks wherein the number of sheep is maintained by different methods ;
- (c) for determining the persons to whom and the time at which advances may be made, and for treating the making of an advance as a satisfaction pro tanto of the subsidy payment in question notwithstanding that the person receiving the advance and the person receiving the balance of the payment are not the same ;
- (d) for prescribing the time within which and the manner in which applications for advances are to be made.

(2) The limits hereinbefore referred to are ten shillings for each sheep in the case of subsidy payments relating to the second relevant day, and seven shillings and sixpence for each sheep in the case of subsidy payments relating to the third relevant day.

(3) Any advances made before the coming into operation of any provision of a hill sheep scheme having effect by virtue of this section, being advances which would have been authorised by that provision if it had then been in force, shall be deemed to be advances authorised by the scheme.

4.—(1) This Act may be cited as the Agriculture (Emergency Payments) Act, 1947. Short title and construction.

(2) The last two foregoing sections shall be construed as one with the Hill Farming Act, 1946.